

AMENDMENT OF SOLICITATION/MODIFICATION OF CONTRACT		1. CONTRACT ID CODE		PAGE OF PAGES	
				1	19
2. AMENDMENT/MODIFICATION NO. 0001		3. EFFECTIVE DATE 03/30/2026		4. REQUISITION/PURCHASE REQ. NO.	
6. ISSUED BY USDA APHIS 250 MARQUETTE AVE SUITE410 MINNEAPOLIS MN 55401		CODE APHIS-MN-126395		5. PROJECT NO. (If applicable)	
		7. ADMINISTERED BY (If other than Item 6)		CODE	
8. NAME AND ADDRESS OF CONTRACTOR (No., street, county, State and ZIP Code)		(x)		9A. AMENDMENT OF SOLICITATION NO. 12639526Q0090	
		x		9B. DATED (SEE ITEM 11) 03/30/2026	
				10A. MODIFICATION OF CONTRACT/ORDER NO.	
				10B. DATED (SEE ITEM 13)	
CODE		FACILITY CODE			
11. THIS ITEM ONLY APPLIES TO AMENDMENTS OF SOLICITATIONS					
☒ The above numbered solicitation is amended as set forth in Item 14. The hour and date specified for receipt of Offers ☒ is extended. ☐ is not extended. Offers must acknowledge receipt of this amendment prior to the hour and date specified in the solicitation or as amended, by one of the following methods: (a) By completing Items 8 and 15, and returning _____ copies of the amendment; (b) By acknowledging receipt of this amendment on each copy of the offer submitted; or (c) By separate letter or electronic communication which includes a reference to the solicitation and amendment numbers. FAILURE OF YOUR ACKNOWLEDGEMENT TO BE RECEIVED AT THE PLACE DESIGNATED FOR THE RECEIPT OF OFFERS PRIOR TO THE HOUR AND DATE SPECIFIED MAY RESULT IN REJECTION OF YOUR OFFER. If by virtue of this amendment you desire to change an offer already submitted, such change may be made by letter or electronic communication, provided each letter or electronic communication makes reference to the solicitation and this amendment, and is received prior to the opening hour and date specified.					
12. ACCOUNTING AND APPROPRIATION DATA (If required)					
13. THIS ITEM ONLY APPLIES TO MODIFICATION OF CONTRACTS/ORDERS. IT MODIFIES THE CONTRACT/ORDER NO. AS DESCRIBED IN ITEM 14.					
CHECK ONE	A. THIS CHANGE ORDER IS ISSUED PURSUANT TO: (Specify authority) THE CHANGES SET FORTH IN ITEM 14 ARE MADE IN THE CONTRACT ORDER NO. IN ITEM 10A.				
	B. THE ABOVE NUMBERED CONTRACT/ORDER IS MODIFIED TO REFLECT THE ADMINISTRATIVE CHANGES (such as changes in paying office, appropriation data, etc.) SET FORTH IN ITEM 14, PURSUANT TO THE AUTHORITY OF FAR 43.103(b).				
	C. THIS SUPPLEMENTAL AGREEMENT IS ENTERED INTO PURSUANT TO AUTHORITY OF:				
	D. OTHER (Specify type of modification and authority)				
E. IMPORTANT: Contractor ☐ is not ☐ is required to sign this document and return _____ copies to the issuing office.					
14. DESCRIPTION OF AMENDMENT/MODIFICATION (Organized by UCF section headings, including solicitation/contract subject matter where feasible.)					
The purpose of this amendment is to revise the Schedule to include CLINs for certain travel required under the contract. The response deadline is extended to 5:00pm CT on Tuesday, April 7, 2026. Period of Performance: 05/01/2026 to 04/30/2031 Change Item 0001 to read as follows (amount shown is the obligated amount): 0001 Ordering Period One: Fixed-wing flight services in accordance with CLINs 0001a-0001b of the Continued ... Except as provided herein, all terms and conditions of the document referenced in Item 9 A or 10A, as heretofore changed, remains unchanged and in full force and effect.					
15A. NAME AND TITLE OF SIGNER (Type or print)			16A. NAME AND TITLE OF CONTRACTING OFFICER (Type or print)		
			AMANDA K. BARBOSA		
15B. CONTRACTOR/OFFEROR		15C. DATE SIGNED		16B. UNITED STATES OF AMERICA	
(Signature of person authorized to sign)				(Signature of Contracting Officer)	

CONTINUATION SHEET	REFERENCE NO. OF DOCUMENT BEING CONTINUED	PAGE	OF
	12639526Q0090/0001	2	19

NAME OF OFFEROR OR CONTRACTOR

ITEM NO. (A)	SUPPLIES/SERVICES (B)	QUANTITY (C)	UNIT (D)	UNIT PRICE (E)	AMOUNT (F)
	Schedule (05/01/2026 - 04/30/2027)				
	Period of Performance: 05/01/2026 to 04/30/2027				
	Change Item 0002 to read as follows (amount shown is the obligated amount):				
0002	Ordering Period Two: Fixed-wing flight services in accordance with CLINs 0002a-0002b of the Schedule (05/01/2027 - 04/30/2028)				
	Period of Performance: 05/01/2027 to 04/30/2028				
	Change Item 0003 to read as follows (amount shown is the obligated amount):				
0003	Ordering Period Three: Fixed-wing flight services in accordance with CLINs 0003a-0003b of the Schedule (05/01/2028 - 04/30/2029)				
	Period of Performance: 05/01/2028 to 04/30/2029				
	Change Item 0004 to read as follows (amount shown is the obligated amount):				
0004	Ordering Period Four: Fixed-wing flight services in accordance with CLINs 0004a-0004b of the Schedule (05/01/2029 - 04/30/2030)				
	Period of Performance: 05/01/2029 to 04/30/2030				
	Change Item 0005 to read as follows (amount shown is the obligated amount):				
0005	Ordering Period Five: Fixed-wing flight services in accordance with CLINs 0005a-0005b of the Schedule (05/01/2030 - 04/30/2031)				
	Period of Performance: 05/01/2030 to 04/30/2031				

PART 1.0 - SCHEDULE OF ITEMS

0001 CLINs

Ordering Period One: May 1, 2026 – April 30, 2027

<u>Item No.</u> <u>Amount</u>	<u>Description of Item</u>	<u>Unit</u>	<u>Est. Quantity</u>	<u>Unit Price</u>	<u>Total</u>
0001a.	Fixed Wing Flight Services	HR	500	\$_____	\$_____
0001b.	Travel Expenses (Training)	Day	4	\$500.00	\$2,000.00

0002 CLINs

Ordering Period Two: May 1, 2027 – April 30, 2028

<u>Item No.</u> <u>Amount</u>	<u>Description of Item</u>	<u>Unit</u>	<u>Est. Quantity</u>	<u>Unit Price</u>	<u>Total</u>
0002a.	Fixed Wing Flight Services	HR	500	\$_____	\$_____
0002b.	Travel Expenses (Training)	Day	4	\$500.00	\$2,000.00

0003 CLINs

Ordering Period Three: May 1, 2028 – April 30, 2029

<u>Item No.</u> <u>Amount</u>	<u>Description of Item</u>	<u>Unit</u>	<u>Est. Quantity</u>	<u>Unit Price</u>	<u>Total</u>
0003a.	Fixed Wing Flight Services	HR	500	\$_____	\$_____
0003b.	Travel Expenses (Training)	Day	4	\$500.00	\$2,000.00

0004 CLINs

Ordering Period Four: May 1, 2029 – April 30, 2030

<u>Item No.</u> <u>Amount</u>	<u>Description of Item</u>	<u>Unit</u>	<u>Est. Quantity</u>	<u>Unit Price</u>	<u>Total</u>
0004a.	Fixed Wing Flight Services	HR	500	\$_____	\$_____
0004b.	Travel Expenses (Training)	Day	4	\$500.00	\$2,000.00

0005 CLINs

Ordering Period Five: May 1, 2030 – April 30, 2031

<u>Item No.</u>	<u>Description of Item</u>	<u>Unit</u>	<u>Est. Quantity</u>	<u>Unit Price</u>	<u>Total</u>
0004a.	Fixed Wing Flight Services	HR	500	\$ _____	\$ _____
0004b.	Travel Expenses (Training)	Day	4	\$500.00	\$2,000.00

CONTRACT CEILING: \$350,000.00

SCHEDULE NOTES

- 1) The quantities as listed in the “Schedule of Items” are estimates for this contract period. The Government estimates, but does not guarantee, the volume of purchases under this contract. USDA-APHIS attempts to be as accurate as possible when providing estimated quantities, however, actual quantities required may vary from the quantities listed. Beyond the guaranteed contract minimum of \$10,000.00, no guarantee is given as to the actual quantity required during the term of this contract.
- 2) The Department of Labor Service Contract Act applies to this contract so the Contractor must take this into consideration when developing a price quote. The Contractor is responsible for obtaining the wage determination applicable to the location of their facility where the services will be performed as well as determining the appropriate labor categories/occupation codes under the applicable wage determination. See section entitled “Wage Determination and Labor Rates” for further information. Please contact the contracting officer if you need assistance.
- 3) Travel Expenses (Training): On occasions when travel of more than 50 miles from the Contractor’s home base is required to complete training and performance evaluations required under this contract, a fixed daily travel rate will be paid for each individual required to travel. All travel must be approved in advance by the Contracting Officer Representative (COR). Travel will be reimbursed at the fixed rate established in the Schedule.

PART 2.0 – PERFORMANCE WORK STATEMENT

2.1 - Scope

This PWS defines the requirements for providing fixed-wing pilot services, supporting wildlife damage management operations in Nebraska and Wyoming, including all tasks, deliverables, and standards required for safe and compliant flight operations

2.2 - Background

The United States Department of Agriculture (USDA), Animal and Plant Health Inspection Service (APHIS), Wildlife Services (WS) Programs in Nebraska (NE) and Wyoming (WY) require contracted fixed-wing pilot services to support their wildlife damage management and related operational missions. The Contractor must provide pilot services for

Government-furnished aircraft, specifically a Piper PA-18 Super Cub or a Cub Crafters CC18 Top Cub, for use within Nebraska and Wyoming.

2.3 - Purpose

The purpose of this Performance Work Statement (PWS) is to identify the required tasks and responsibilities of the Contractor providing fixed-wing pilot services in support of the Nebraska and Wyoming WS Programs.

Contracted flight operations primarily support activities related to mitigating coyote predation on livestock and/or wildlife. Additional missions may include disease monitoring, removal of invasive species, and emergency response operations. Flight requirements may fluctuate based on predation levels, operational priorities, and weather conditions; however, the Contractor must remain available to perform services with a minimum of 48 hours' notice.

WS may conduct operations under interagency agreements or cooperative service agreements with private landowners, tribal governments, and federal, state, or county agencies. The Contractor's services may be utilized to support any such agreements.

2.4 - Contract Type and Term

The government is awarding a firm, fixed-price, indefinite delivery, indefinite quantity, commercial services contract.

The period of performance for this contract includes five ordering periods and each ordering period will be twelve (12) months in duration.

2.5 Limitations on Personal Services

The Government will not exercise supervision or control over Contractor personnel. Contractor personnel shall perform independent, non-personal services.

2.6 - Performance Tasks

2.6.1 Objective 1: Provide Safe and Effective Fixed-Wing Flight Operations

The Contractor must conduct fixed-wing flight operations using Government-furnished aircraft to support wildlife damage management missions including coyote predation mitigation, disease monitoring, invasive species removal, and emergency response operations. The Contractor must maintain availability with a minimum of 48 hours' notice and conduct flights only during daylight hours and under VFR conditions. Expected outcomes include safe, efficient completion of missions and consistent aircraft and pilot readiness. All tasks must comply with the WS Aviation Safety and Operations Manual, FAA regulations, weight and balance requirements, and all applicable safety policies. The Contractor must possess and maintain all required pilot qualifications, including a Commercial Pilot Certificate with instrument rating, FAA medical certification, and required flight-hour minimums. The pilot must demonstrate proficiency in low-level flight, safe operational judgment, emotional stability, and effective communication.

2.6.2 Objective 2: Maintain Required Safety, Reporting, and Compliance Documentation

The Contractor must submit accurate flight hour documentation per sortie, complete required pilot evaluations and annual flight reviews, and report all accidents, incidents, and hazards in accordance with WS and FAA requirements. Expected outcomes include timely and accurate reporting that supports program oversight, regulatory compliance, and risk management. Compliance must follow FAA reporting rules and WS Aviation Safety Manual requirements. The Contractor must possess the ability to accurately complete all reporting, documentation, and hazard/incident submissions.

2.6.3 Objective 3: Comply with Personal Protective Equipment Requirements

The Contractor must wear a WS-approved aviation helmet, flight suit, gloves, and all other required protective equipment during all flight operations. Expected outcomes include full adherence to aviation PPE requirements, ensuring pilot safety and compliance with WS standards. All PPE must meet the specifications within the WS Aviation Safety and Operations Manual. The Contractor must be able to inspect, maintain, and properly wear all required PPE.

2.6.4 Objective 4: Ensure Aircraft Fueling, Handling, and Maintenance Compliance

The Contractor must ensure all fuel used meets engine manufacturer requirements and is transported, stored, and dispensed in accordance with aviation standards. The Contractor must support maintenance requirements, ensure compliance with manufacturer instructions, FAA regulations, FAA Airworthiness Directives, WS maintenance advisories, and maintain accurate aircraft maintenance records, including updated weight and balance data. Expected outcomes include safe and airworthy Government-furnished aircraft with complete and compliant documentation. The Contractor must possess knowledge of fueling standards, maintenance documentation, and applicable regulatory requirements.

2.6.5 Objective 5: Implement and Maintain a Contractor Safety Management System

The Contractor must establish, implement, and maintain a Safety Management System that aligns with WS aviation safety practices and includes Safety Policy, Safety Risk Management, Safety Assurance, and Safety Promotion. The Contractor must utilize the WS Flight Risk Assessment Tool (FRAT), SAFECOM reporting, and maintain a hazard log with corrective action tracking. Expected outcomes include continuous hazard identification, effective mitigation, and integration of safety practices into all aviation operations. SMS documentation must be submitted within 30 days of award. The Contractor must possess skills in aviation SMS processes, hazard analysis, and corrective action monitoring.

2.6.6 Objective 6: Provide Operational Availability, Coordination, and Communication

The Contractor must maintain readiness at designated operational bases and coordinate schedules with the Contracting Officer Representative or Contracting Officer as required. The Contractor must notify the Contracting Officer when reaching 80 percent of the task order funding limit. Expected outcomes include consistent operational availability and effective coordination with Government personnel. The Contractor must have strong communication skills and the ability to operate in variable schedules and remote locations.

2.6.7 Objective 7: Meet Security, Background, and Eligibility Requirements

The Contractor must complete all required background checks, identity verification, and adherence to personnel eligibility requirements, including citizenship and lawful permanent resident status where applicable. Expected outcomes include ensuring that only vetted, eligible personnel support contract performance. Compliance must follow HSPD-12, FIPS 201, and applicable federal security requirements. The Contractor must have the capability to successfully undergo federal background processes and complete internal pre-screening prior to Government submission.

2.7 – Deliverable Schedule

Key Deliverables

<i>Item No.</i>	<i>Deliverable / Item Title</i>	<i>Description</i>	<i>Frequency</i>	<i>Reference</i>	<i>Delivery Format</i>	<i>Due By</i>
1	<i>Pilot Services Report</i>	<i>Report of recorded flight hours</i>	<i>Per sortie</i>	<i>Ref. PWS Section 2.16, Recording and Payment of Services</i>	<i>Via IPP invoice</i>	<i>No more frequently than every two weeks</i>
2	<i>Annual Pilot Qualification Verification Report</i>	<i>Report verifying compliance with PWS Section 2.8.2 and 2.14.6</i>	<i>Annually</i>	<i>Ref. PWS Section 2.14.6, Inspection of Key Personnel</i>	<i>Via email to COR</i>	<i>Prior to start of ordering period flight operations</i>
3	<i>Safety Management System Documentation and Updates</i>	<i>Initial SMS plan plus updates, revisions, hazard logs, and safety date required under contractor's SMS</i>	<i>Initial submission within 30 days of award; update as required or upon Government request</i>	<i>Ref. PWS Section 2.19 Contractor Safety Management System (SMS)</i>	<i>Via email to COR and SASI</i>	<i>30 days after award; Updates: As required</i>

2.8 – Performance Requirements

2.8.1 - Pilot Requirements

The pilot must be qualified in accordance with WS aviation operations and training policies included in the Wildlife Services Aviation Safety and Operations Manual, in addition to the requirements herein.

2.8.2 - Pilot Qualifications

- i. Valid and current Commercial Pilot Certificate
- ii. Instrument flight rating
- iii. First class or second-class FAA medical certificate.
- iv. Must pass required background check.
- v. 1,500 hours total flight time.

- vi. 250 hours Pilot In Command (PIC) flight time.
- vii. 100 hours PIC flight time in the preceding 12 months.
- viii. 75 hours of night flight time.
- ix. 1200 hours PIC flight time in single engine airplane.
- x. 100 hours PIC flight time in a Piper PA-18 Super Cub or a CubCrafters CC18 Top Cub.
- xi. 250 hours PIC flight time for wildlife damage management operations.

2.8.3 - Pilot Authority and Responsibility

The pilot is responsible for the safe operation of the aircraft and the safety of its occupants. Safety requirements, such as preflight, reserve fuel, and weight and balance limitations must be strictly adhered to. The pilot must refuse any flight or landing which the pilot considers hazardous or unsafe.

Pilot must demonstrate the following:

- i. Flying safety attitudes and habits.
- ii. Positive attitude regarding requirements and procedures for aerial hunting.
- iii. Emotional stability under the stress of low-level aircraft operations required for aerial hunting.
- iv. Positive personality characteristics required to work and communicate effectively with field personnel and cooperators.
- v. Knowledge of and/or willingness to learn predator habits and how to effectively and efficiently aerial hunt.
- vi. Ability to safely identify and maintain effective airborne contact with the target animal or maintain course along transects within navigational software (e.g., AgNav) during aerial operations.
- vii. Willingness to work unusual hours and lodge at remote field locations.

Pilot is limited to flying during daylight hours and under VFR conditions only. Daylight hours are defined as 30 minutes before official sunrise to 30 minutes after official sunset, or during extended twilight hours when terrain features can be readily distinguishable for a distance of at least one mile.

2.9 - Personal Protective Equipment (PPE)

Pilots must provide and wear an aviator's protective helmet equipped with microphone and headset compatible with radio specifications of this contract during all flights. The helmet must be equipped with a chin strap and must be individually fitted to cover the head, back of the neck and ears. Flights helmets must meet the specifications within WS Aviation Safety and Operations Manual.

Pilots must wear a long-sleeved flight suit made of fire-resistant polyamide or aramid material or equal. Pilots must wear leather or polyamide or aramid gloves. Flight suits and gloves must be

provided by the Contractor. The shirt, trousers, boots, and gloves must overlap to prevent exposure to flash burns.

2.10 - Government-Furnished Property

USDA-WS will provide the following government property to the Contractor for use in the performance of this contract.

- i. Aircraft
- ii. Fuel, Oil, and Lubricants
- iii. Flight Following System (i.e. Spidertracks)
- iv. WS Manuals

2.11- Fuel, Oil and Lubricants

- i. All fuel, oil, and lubricants required for the aircraft during the effective period of the contract must be furnished by the government.
- ii. The pilot must ensure all fuel used by aircraft is approved for use by the engine manufacturer and must be a petroleum product designed for use in aircraft.
- iii. The pilot must ensure all fuels are manufactured, transported, stored and dispensed in strict accordance with procedures formulated for aviation fuel standards.

2.12 – Flight Operations

Flight operations will be conducted in strict compliance with the WS Safety and Operations Manual, the WS Aviation Safety Program Policies, the Federal Aviation Regulations, and any applicable local laws.

2.13 – Government Roles and Responsibility

The Contracting Officer will designate a Contracting Officer Representative (COR) to work with the Contractor to coordinate all aspects of this contract.

2.14 – Contractor Key Personnel

2.14.1 Key Personnel Designation

The Contractor shall designate the Pilot(s) performing services under this contract as **Key Personnel** due to the critical nature of aviation operations and the mission-essential skills required for wildlife damage management flight missions. Key Personnel are those individuals whose qualifications, experience, and performance are essential to successful contract execution.

2.14.2 Approval and Substitution of Key Personnel

The Contractor shall identify all proposed Key Personnel in their offer, including full name, licenses, certifications, flight hour documentation, and all other information necessary to verify compliance with the pilot qualification requirements.

No substitutions of Key Personnel may be made without **prior written approval** from the Contracting Officer. Requests for substitution must include:

- Reason for the requested change;

- Full qualification package for the proposed replacement;
- Confirmation that the replacement meets or exceeds all performance, safety, and flight-hour requirements contained in this PWS.

The Contracting Officer reserves the right to reject any proposed replacement who does not meet qualification standards or whose experience is deemed insufficient for safe and effective mission performance.

2.14.3 Temporary Absences

In the event of short-term, temporary absences (e.g., illness, personal emergency), the Contractor shall notify the COR as soon as practicable. If the absence exceeds **five (5) consecutive business days**, the Contractor shall either provide a qualified substitute pilot for Contracting Officer approval or suspend flight operations until Key Personnel availability is restored. The Government is under no obligation to accept unapproved personnel.

2.14.4 Performance of Key Personnel

Key Personnel must maintain the performance, safety, and conduct standards required in the PWS at all times, including:

- Compliance with flight-hour and medical requirements (Section 2.5.2);
- Compliance with WS Aviation Safety and Operations Manual;
- Demonstrated safe decision-making, emotional stability, and professionalism;
- Ability to work effectively with WS crews, cooperators, and Government personnel.

If Key Personnel performance becomes unacceptable or unsafe, the CO may require their removal and replacement at no additional cost to the Government.

2.14.5 Continuity of Operations

The Contractor shall maintain adequate staffing and internal planning to ensure continuity of operations in case of resignation, removal, or extended unavailability of Key Personnel. Delays in performance due to failure to provide qualified Key Personnel will be considered a Contractor performance issue and may affect past performance evaluations, payment, or continuation of work.

2.14.6 Inspection of Key Personnel

Upon request, Contractor must promptly submit completed pilot information forms. Information from these forms will be used in evaluating the pilot's qualifications. Only those individuals whose previous experience can be verified will be considered for use under this contract.

Prior to commencing flight operations under this contract, all pilots must complete a pilot performance evaluation for carding in accordance with the Wildlife Services Aviation Safety and Operations Manual. This performance evaluation may be conducted by a Wildlife Services check airman or contractor at the expense of the government. The aircraft used for the evaluation will be the same type and model utilized for operations under this contract. Location of the evaluation flights should include access to terrain similar to that to be flown during the contract period when possible.

Pilots under this contract must complete an annual flight review consisting of a minimum of the base tasks (1000 series) and mission task (2000 series) as outlined in the WS Airmen Certification Standards.

2.15 - Availability of Service

The Contractor must provide a pilot to perform flight services at the designated base as required by the Contracting Officer or COR. The schedule of operations will be planned by the Government with the cooperation of Contractor personnel. The Government may order flight services on any day during daylight hours, depending upon the necessity of the work and suitability of flying conditions. Daylight hours are defined as between ½ hour before sunrise to ½ hour after sunset.

2.16 - Recording and Payment of Services

- i. All services received will be submitted for payment in IPP.
- ii. Fixed wing flight time begins when the aircraft leaves the blocks for requested flight services and ends when the aircraft arrives at the destination blocks. Flight time will be recorded in hours and tenths by means of an engine hour recorder activated by an oil pressure switch or recording tachometer.
- iii. Payment must be made only for flight time ordered by the Contracting Officer or COR. Payment will be made to the nearest tenth of an hour of actual flight time. No charge will be allowed for taxes from which the USDA is exempt.

2.17 - Accident Reporting and Investigation

In the event of an incident or accident involving the aircraft, the pilot, if able, must notify the respective WS supervisor and the National Aviation Coordinator (NAC) as soon as practical. An incident report must be submitted to the NAC. Other reporting provisions provided in the WS Aviation Safety Manual will be submitted in a timely manner.

The Contractor must maintain an accurate record of all aircraft accidents, incidents and injuries to all personnel involved while performing under this contract and must immediately notify the National Aviation Coordinator of all such accidents, incidents or injuries. Contractor is not permitted to remove or alter the aircraft following an accident. Contractor must make available all flight records and any equipment (damaged or undamaged) deemed necessary by the Accident Investigation Board to determine what factors caused the incident/accident.

The Government will be responsible for all costs associated with the disassembly of any aircraft, aircraft engine, propeller or equipment that is necessary to determine the probable cause of any accident or incident.

Post-accident drug and alcohol testing will be in accordance with the FAA's drug and alcohol testing regulation (14 CFR part 120) for individuals certificated under parts 61 and 63. All drug and alcohol testing results must be made available to the Government upon completion. Payment for required drug and alcohol testing will be coordinated through the applicable State Director's office with the Government paying for the testing on a Government Purchase Card.

2.18 - Liabilities of The Contractor and The Government

The Government will not assume any responsibility for loss or damage to equipment owned or operated by the Contractor, his agents, employees or sub-Contractors. The Government will not assume any responsibility for injury or death of the pilot, his agents, employees or sub-Contractors, caused during the performance of the contract. The Contractor will be responsible for the intentional negligent and wrongful acts or omissions of the pilot, his agents, employees or sub-Contractors and employees and agents of the sub-Contractors incidental to the performance of this contract.

The Contractor will hold and save the Government, its officers and employees harmless from all liability for any death or damage to all persons, (other than the liability of the Government to USDA employees as provided for under the Federal Employees Compensation Act) real property or personal property which results from the operation of, or incidental to, equipment furnished by the contract, or otherwise incidental to performance of the agreement. However, the Contractor will not be responsible for any intentional negligent or wrongful acts of omissions of Wildlife Services employees.

During the period of performance of the contract, certain Government owned equipment may be assigned to the pilot, (e.g. flight following device, air to ground radio, flight suit). If the equipment is lost, damaged or destroyed as a result of the pilot's negligence, or as a result of any accident, the fair market value of the equipment will be charged to the Contractor and withheld from payments due under this contract.

2.19- Contractor Safety Management System (SMS)

2.19.1 Requirement. The Contractor must establish, implement, and maintain its own Safety Management System (SMS) covering all aviation activities performed under this contract. The Contractor's SMS must, at a minimum, include Safety Policy, Safety Risk Management, Safety Assurance, and Safety Promotion processes and be compatible with Wildlife Services (WS) aviation safety practices.

2.19.2 Alignment. The Contractor's SMS must integrate applicable WS procedures and tools for missions performed under this contract, including use of the WS Flight Risk Assessment Tool (FRAT) and SAFECOM hazard/incident reporting, as directed by the Supervisory Airworthiness Safety Inspector (SASI).

2.19.3 Submission and Acceptance. Within 30 calendar days of award (or prior to flight operations, whichever is earlier), the Contractor must submit its SMS documentation (policy, procedures, reporting, assurance, and training) to the SASI for review of alignment. The Government's review confirms compatibility with WS practices and does not relieve the Contractor of responsibility for safety performance.

2.19.4 Reporting and Notifications. The Contractor must:

- (a) Report aviation hazards and incidents via SAFECOM and the Contractor's internal system;

- (b) Provide immediate notification to the COR of any accident/incident affecting a WS mission, followed by written reporting to the SASI and Contracting Officer (CO).

2.19.5 Corrective Actions and Data Sharing. The Contractor must maintain a hazard log, track corrective actions, and share relevant safety data/trends with WS upon request to support mission risk management.

2.19.6 Training and Competency. The Contractor must document and maintain safety training and qualifications commensurate with the Contractor's roles and aircraft operated under this contract.

2.19.7 Sub-Contractors. The Contractor must flow down these SMS requirements to all aviation sub-Contractors performing under this contract.

2.19.8 Enforcement. Failure to maintain and operate an effective, WS-aligned SMS constitutes a material breach and may result in suspension of flight activities, withholding of payments, or termination, in addition to other remedies.

2.20 - Maintenance Requirements

If aircraft maintenance is required at locations other than the designated base of operations, the Contractor must provide a pilot for required ferry flight services necessary to relocate the aircraft.

The government furnished aircraft must be operated and maintained in accordance with all manufacturer requirements and applicable Federal Aviation Regulations and WS Aviation Safety and operations Manual.

All applicable manufacturer's mandatory bulletins and FAA Airworthiness Directives and WS maintenance advisories and alerts must be complied with prior to performance under this contract. Bulletins or Airworthiness Directives published during the contract must be complied with in accordance with the individual bulletin or directive.

All maintenance deficiencies in GFA existing prior to the contract must be corrected by the Government before assignment to Contractor. Correction of deficiencies occurring during the contract must be coordinated by the Government.

The Government must ensure that all maintenance performed on the government furnished aircraft is recorded in the corresponding aircraft's maintenance record in accordance with FAR 43, 91, and 135 as applicable. In addition to aircraft time-in-service, the hour-meter reading must be recorded for all maintenance record entries.

A separate list of FAA Airworthiness Directives, Manufacturer's Mandatory Service Bulletins, and WS Maintenance Alerts and Advisories for the make and model of aircraft furnished will be provided. The Government will record whether each item is applicable and, if applicable, the date and airframe total time at compliance, method of compliance, next compliance due date if

recurring, and the authorized signature and number. The list format will be similar to that shown in Advisory Circular 43-9A, Appendix 3.

The pilot must ensure the government furnished aircraft has a current weight and balance that is updated after any major repair or alteration or applicable changes to the equipment list.

The aircraft's static system, transponder and encoding altimeters system must be maintained in accordance with the requirements of FAR 91.215.

2.21 - Task Orders

- i. Government funding will be obligated to the contract by task order. The fixed hourly rate for flight services will be listed and a total not to exceed contract amount will be included.
- ii. The Contracting Officer may provide funding under this contract obligating funds for the procurement of flying hours prior to the Government needing delivery of said ordered quantities.
- iii. The COR will be allowed to coordinate services and schedule specific performance dates and quantities up to, but not exceeding, the total quantity authorized by the Contracting Officer.
- iv. The Contractor must inform the Contracting Officer if the task order reaches 80% of the total not to exceed contract amount.

2.22 - Invoices and Payment Information

- i. USDA uses the Invoice Processing Platform (IPP) for electronic submission and tracking of invoices and payment information to its suppliers of goods and services. Invoices must be submitted electronically to the IPP invoicing system. Additional information is available at www.ipp.gov.
- ii. Invoices must be prepared in accordance with 52.212-4 (g) and must be supported with a sum of the actual flight service hours performed.
- iii. Credit card purchases are allowed under this contract. The USDA Contracting Officer will provide the names of individuals authorized to make credit card purchases under this contract. The authorization will be in the form of written verification via email.

2.23- Wage Determination and Labor Rates

The Department of Labor Service Contract Act applies to this contract. Task orders will specify the applicable wage determination for the ordering period.

The Contractor will be responsible for obtaining the proper wage determination for the location where the work will be performed. The SCA wage determinations can be found at www.sam.gov. Please contact the contracting officer if you need assistance in obtaining the wage determination.

2.24- Safety and Security Requirements

The Homeland Security Presidential Directive-12 (HSPD-12), dated August 27, 2004, requires the development and agency implementation of a mandatory Government-wide standard for secure and reliable forms of identification for Federal employees and Contractors, including Contractor employees. As directed by HSPD-12, on February 25, 2005, the Department of Commerce issued FIPS PUB 201, which is a federal standard for secure and reliable personal

identity verification (PIV) for routine physical access to Federally controlled facilities or information systems. Office of Management and Budget (OMB) memorandum M-05-24 dated August 5, 2005, provides instructions for implementing HSPD-12 according to FIPS PUB 201, and M-08-01, dated October 23, 2007, reminds all parties that a background investigation is required.

48 CFR 3052.204-71 requires each individual employed under a federal contract to be a citizen of the United States of America, or a non-U.S. citizen who has been lawfully admitted for permanent residence as evidence by a Permanent Resident Card (USCIS I-551).

Contractor's must identify in their quotes or proposals, the names and citizenship of all non-U.S. citizens proposed to work under the contract. Any additions or deletion of non-U.S. citizens after contract award must also be reported to the CO.

All Contractor personnel must have a valid driver's license or identification.

The Contractor must, through their own internal background investigation protocol and pre-employment investigation, ensure that each Contractor employee submitted for a federal background investigation is reasonably expected to receive a favorable adjudication of their respective investigation.

For additional information related to USDA implementation of HSPD-12, visit <http://hspd12.usda.gov>

2.25– Insurance Requirements for CAS Contracts – Public Aircraft Operations (PAO)

GENERAL

The Contractor must maintain, at its own expense, all insurance necessary to comply with FAR 52.228-5, Insurance—Work on a Government Installation, and FAR 52.245-1, Government Property, Alternate I, as applicable to operations involving Government-Furnished Aircraft (GFA). Insurance must fully cover all aircraft operations conducted under this contract, including those designated as Public Aircraft Operations (PAO) in accordance with 49 U.S.C. §40125 and FAA Advisory Circular 00-1.1B. Insurance must remain effective for the duration of the contract and any exercised option periods.

PUBLIC AIRCRAFT OPERATIONS (PAO) ENDORSEMENT

All aviation insurance policies required under this contract must include an endorsement affirming coverage for Public Aircraft Operations. The endorsement must remove any civil-aviation-only exclusions and must state that coverage applies to missions determined to be PAO on a flight-by-flight basis pursuant to FAA AC 00-1.1B. The Contractor must ensure that no policy exclusion invalidates coverage due to PAO status, mission purpose, aircraft operator, or persons onboard.

“ANY AIRWORTHINESS” CERTIFICATE ENDORSEMENT

All aviation insurance policies required under this contract must include an endorsement affirming “any airworthiness” certificate coverage. The endorsement must remove any

exclusions tied to the type of airworthiness certificate and must state that coverage applies whether the aircraft holds a Standard, Restricted, Experimental, or any other FAA-issued airworthiness certificate. The Contractor must ensure that no policy exclusion invalidates coverage due to airworthiness certificate type.

ADDITIONAL INSURED AND WAIVER OF SUBROGATION

All liability insurance policies required under this contract must name the United States of America, Department of Agriculture, as Additional Insured. All such policies must include a Waiver of Subrogation in favor of the United States to the extent permitted by law.

NOTICE OF CANCELLATION OR MATERIAL CHANGE

All required insurance policies must provide the Contracting Officer with no less than thirty (30) days' written notice of cancellation, non-renewal, or any material change that affects coverage levels or required endorsements.

MINIMUM INSURANCE LIMITS

The following coverage types and minimum limits are required in accordance with AGAR 428.306 Insurance Under Fixed-Price Contracts.

- a. **Workers' Compensation and Employer's Liability.** The Contractor must comply with applicable Federal and State workman's compensation and occupational disease statutes. If these diseases are not covered, they must be included under the employer's liability section of the policy, unless contract operations are commingled with the Contractor's commercial operations. Employer's liability coverage of at least \$100,000 is required, except in States with exclusive or monopolistic funds that prohibit private carriers from providing workers' compensation.
- b. **General Liability.** The Contractor must have bodily injury liability insurance coverage written on a comprehensive form of policy of at least \$500,000 per occurrence.
- c. **Aircraft Public and Passenger Liability.** When using aircraft for the contract, the Contractor must have aircraft public and passenger liability insurance. Coverage must be at least \$200,000 per person, \$500,000 per occurrence for bodily injury, excluding passengers. For passenger injury, coverage must be at least \$200,000 multiplied by the number of seats or passengers, whichever is greater.
- d. **All Risk Hull Insurance (GFA).** When GFA is provided under this contract, the Contractor must maintain hull insurance equal to the full agreed value of the GFA. The policy must disclose the Government's ownership interest and list the United States as Loss Payee. Hull coverage must apply during storage, ground handling, maintenance, taxi, and flight operations, including PAO missions.

The aircraft tail numbers listed below may be assigned for flight operations under this contract; however, simultaneous primary hull coverage for all listed aircraft is not required. The Contractor is required to maintain primary hull insurance only for the individual GFA, identified by tail number, that is actively assigned and operated at any

given time. Hull coverage must be updated upon reassignment to a different aircraft and must meet all requirements of this clause.

Aircraft Available for assignment as GFA:

Tail Number	Aircraft Model	Hull Value
N15PQ	CubCrafters CC18-180	\$200,000.00
N706C	CubCrafters CC18-180	\$200,000.00
N41529	Piper PA-18-150	\$160,000.00
N91187	Piper PA-18-150	\$160,000.00

GOVERNMENT PROPERTY REQUIREMENTS

The Contractor must comply with FAR 52.245-1, Government Property, Alternate I. The Contractor assumes the risk of loss or damage to all Government-Furnished Aircraft and associated equipment upon delivery, except for reasonable wear, tear, or consumption. The Contractor must maintain all insurance required to support the risk allocation established by FAR 52.245-1 Alternate I.

SUBMISSION OF CERTIFICATES AND ENDORSEMENTS

Prior to beginning performance, and annually thereafter or upon policy renewal, the Contractor must provide the Contracting Officer with certificates of insurance and copies of all required endorsements, including:

- (1) PAO Endorsement
- (2) “Any Airworthiness” Certificate Endorsement
- (3) Additional Insured Endorsement
- (4) Waiver of Subrogation
- (5) 30-Day Cancellation Notice
- (6) Loss Payee Endorsement for GFA hull coverage

PAO DETERMINATIONS AND MISSION DOCUMENTATION

The Contractor must identify each flight as PAO or civil using the criteria in FAA AC 00-1.1B. The Contractor must ensure insurance coverage applies to each operation as designated.

2.26 Public Aircraft Operations Requirements and Contactor Operational Impacts

2.26.1 General

Public Aircraft Operations (PAO) conducted under this contract must comply with the statutory definitions provided in **49 U.S.C. §40102(a)(41) and 49 U.S.C. §40125**. Whether a flight qualifies as PAO is determined **on a flight-by-flight basis** and must meet the statutory criteria pertaining to aircraft ownership or lease status, operator, flight purpose, and persons on board. Any flight that does not meet statutory requirements must be conducted as a **civil aircraft operation** in full compliance with all applicable FAA regulations.

2.26.2 Flight-by-Flight Determination

Prior to each flight, the Government and Contractor shall jointly determine whether the mission will be conducted as PAO or as a civil operation. This determination must consider:

- Aircraft ownership or exclusive-lease status;
- The identity of the operator;
- The governmental function associated with the flight; and
- The persons onboard, limited to crew and qualified non-crewmembers.

Flights that do not meet the statutory definition may not be designated as PAO.

2.26.3 Government Declaration Requirement

PAO status is **not automatic**. The Government must provide the Contractor with a **written declaration of PAO status** for designated flights intended to be performed as public aircraft operations. This declaration must:

- Be issued by the Contracting Officer or other authorized Government official;
- Identify the aircraft, period of performance, and nature of operations;
- Affirm that the flights satisfy PAO statutory criteria.

The declaration must be issued **before** PAO flights occur.

2.26.4 Contractor Responsibilities

Before conducting any PAO flights, the Contractor shall:

1. Receive the Government's written PAO declaration;
2. Submit a copy of the declaration to the FAA **Flight Standards District Office (FSDO)** having oversight jurisdiction;
3. Coordinate with the Government to ensure each flight meets PAO statutory eligibility;
4. Decline any mission that would violate applicable civil aviation regulations unless PAO status is formally declared.

All aircraft, including those conducting PAO, must continue to comply with certain operating rules applicable to all users of the National Airspace System (e.g., 14 CFR §91.119).

2.26.5 Government Responsibilities

The Government is responsible for:

- Establishing PAO status through written declaration;
- Determining whether each flight satisfies PAO statutory requirements;
- Assuming operational oversight responsibilities associated with PAO, consistent with FAA policy stating that FAA oversight ceases for valid PAO missions.

2.26.6 Insurance and Liability Considerations

PAO status does not alter the Contractor's obligation to maintain all insurance, endorsements, and policy conditions required under this contract, including PAO endorsements, "any airworthiness certificate" coverage, Additional Insured status, and Loss Payee requirements.

2.26.7 Documentation and Recordkeeping

The Contractor shall maintain all PAO declarations, FSDO submissions, and associated correspondence for at least **three (3) years** after completion of performance. Records must be made available to the Government upon request within five (5) business days.

2.26.8 Loss of PAO Eligibility

If the Contractor fails to obtain or maintain a written PAO declaration, or if a mission does not meet the statutory criteria for PAO, the flight will automatically revert to **civil aircraft operation** status and must comply with all applicable requirements of 14 CFR. FAA retains full enforcement authority for any civil operations conducted without proper PAO designation.

2.27– Quality Assurance Surveillance Plan (QASP)

A QASP applies to this contract. The QASP describes the Government’s methods for evaluating the Contractor’s performance against the requirements of this Performance Work Statement. The QASP is a Government-developed and Government-administered tool used to ensure acceptable performance and does not change the Contractor’s responsibilities under the contract.

Surveillance under the QASP is limited to assessing service outcomes and compliance with contract requirements and will not involve any supervision or control over Contractor personnel, consistent with the contract’s designation as a non-personal services requirement.